

**IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA**

CHRISTOPHER HANSON, individually and
as attorney for himself and attorney/next friend
for his minor children [8 years old] and [6 years old],

Plaintiff,

v.

Case No.: 2025-CA-10255

THIRTEENTH JUDICIAL CIRCUIT
COURT, CLERK OF THE COURT
FOR THE THIRTEENTH JUDICIAL
CIRCUIT, GINA JUSTICE (AND/OR
CURRENT COURT ADMINISTRATOR),
CHIEF JUDGE CHRISTOPHER C.
SABELLA, JUDGE KELLY AYERS,
JUDGE MATTHEW FELIX, MIKE MOORE,

Defendants.

_____/

**DEFENDANTS' RESPONSE TO PLAINTIFF'S MOTION FOR SUMMARY FINAL
ORDER AND ENTRY OF PEREMPTORY WRIT OF MANDAMUS**

COMES NOW the Defendants, Thirteenth Judicial Circuit Court, Court Administrator of the Thirteenth Judicial Circuit, Chief Judge Christopher C. Sabella, Judge Kelly Ayers, and Judge Matthew Felix (hereinafter "Defendants"), pursuant to Florida Rule of Civil Procedure 1.510, files this response to Plaintiff's motion for summary final order and hereby respectfully requests this Honorable Court deny Plaintiff's Motion for Summary order and entry of peremptory writ of mandamus.

I. PRELIMINARY STATEMENT

On November 13, 2025, Plaintiff filed the Amended Petition/Complaint for Writ of Mandamus, seeking disclosure of judicial records as they pertain to a divorce and custody

proceeding 24-DR-1150, in compliance with Florida Statute 119. In Support of his Petition, Plaintiff filed Exhibits on October 15, 2025, to support his initial complaint filed on October 14, 2025. Plaintiff's Amended Petition cites the exhibits filed. These exhibits include his public record requests, Plaintiff's subsequent communication with Court Administrative Staff, and correspondence with Chief Judge Sabella. Plaintiff later filed a motion for summary judgment while the Court was attempting to schedule a final hearing on Plaintiff's Writ of Mandamus.

II. SUMMARY OF PLAINTIFF'S ALLEGATIONS

Petitioner seeks an immediate Order requiring Respondents to disclose the documents and records concerning Judicial disqualification and recusal records and associated documents and communications; Administrative and all other communications regarding the GAL issue including Judge Ayers' request for a summary and Husband's objection to excusing Attorney Davis from drafting the summary; Transcripts and filings referenced in public proceedings; Email and text communications of Judge Kelly Ayers and Wendy DePaul and their judicial assistants related to this case including those related to scheduling, objections, and disqualification/recusal; and visual and audio recordings of specified hearings, primarily the April 4, 2025 hearing, offered by Judge Ayers as part of a lie/threat made on the formal transcript, in compliance with Florida Statute 119.

Plaintiff claims that the requests were partially provided but redacted or acknowledged their existence and failed to provide the records. Plaintiff treats a public records request like he has engaged in discovery over the course of litigation. Plaintiff claims that the non-responsive documents and communication are evidence of the Defendants' intent to subvert the truth and conceal evidence of judicial misconduct.

III. DEFENDANT'S STATEMENT OF UNDISPUTED FACTS

- a. On July 24, 2025, Plaintiff emailed a public records request for “all emails and text messages and/or any other form of written communication, sent or received by Judge Kelly Ayers, her judicial assistant, (Dwauna Heyward), and/or any other 13th Circuit representative who participated in scheduling the 12-13-24 hearing on Case No. 24-DR-1150, In Re: The Marriage of Sarah Hanson and Christopher Hanso [sic]. Specifically, I’m requesting all of these materials from December 1, 2024, to December 20, 2024, including communications with court staff, attorneys and/or their agents, or others about scheduling and/or attendance at the hearing on December 13, 2024.” Exhibit A.
- b. On July 24, 2025, Plaintiff emailed another public records request for “all visual and audio recordings from the following hearings in Case No. 24-DR-1150, In Re: The Marriage of Sarah Hanson and Christopher Hanson, Division D, including both live and Zoom formats: Docket #90 – December 19, 2024 hearing; Docket #109 – January 9, 2025 hearing; Docket #118 – January 21, 2025 hearing; Docket #152 – February 12, 2025 hearing; Docket #155 – October 28, 2024 hearing; Docket #158 – December 13, 2024 hearing; Docket #192 – April 22, 2025 hearing; Docket #198 – April 4, 2025 hearing.” Exhibit B.
- c. On July 25, 2025, Plaintiff sent another email request for public records for “all emails and text messages and/or any other form of written communication, sent or received by Judge Kelly Ayers, her judicial assistant (Dwauna Heyward), and/or any other 13th Circuit representative who participated in scheduling the January 9, 2025 hearing on Case No. 24-DR-11550, In Re: The Marriage of

Sarah Hanson and Christopher Hanson. Specifically, I am requesting all of these materials from December 21, 2024, to January 20, 2025, including communications with court staff, attorneys and/or their agents, or others about scheduling and/or attendance at the hearing on January 9, 2025.” Exhibit C.

- d. On August 21, 2025, Defendants responded to Plaintiff’s request for public records with a letter. Exhibit D.
- e. This letter provided the cost of the records, an absence of some records, and the information about why the video that was available was withheld. Exhibit D.
- f. On September 8, 2025, Defendants provided Plaintiff with an additional letter providing supplemental information on the withheld video. Exhibit E.
- g. On November 13, 2025, Plaintiff filed the Amended Petition/Complaint for Writ of Mandamus, seeking disclosure of judicial records as they pertain to a divorce and custody proceeding 24-DR-1150, in compliance with Florida Statute 119. DIN # 12.
- h. In Support of his Petition, Plaintiff filed Exhibits on October 15, 2025, to support his initial complaint filed on October 14, 2025. Plaintiff’s Amended Petition cites the exhibits filed. These exhibits include his public record requests, Plaintiff’s subsequent communication with Court Administrative Staff, and correspondence with Chief Judge Sabella. DIN # 6.
- i. On December 19, 2025, Plaintiff served the Thirteenth Judicial Circuit Court, the Trial Court Administrator, Chief Judge Christopher C. Sabella, Judge Kelly Ayers, and Judge Matthew Felix with the Amended Petition/Complaint. DIN # 32-36.

- j. On January 13, 2026, an Order was entered requiring a response from Defendants as it relates to the request for “court records” in their custody, and only the non-judicial officer candidates as it relates to “administrative records.” DIN # 47.
- k. On January 16, 2026 Plaintiff filed a motion to vacate the January 13, 2026 Order. DIN # 49.
- l. On February 6, 2026 Plaintiff’s motion to vacate the January 13, 2026 Order was heard and granted in part. On February 17, 2026, an Order on Alternative Writ in Mandamus was entered. DIN # 61-62.
- m. On April 14, 2026, Plaintiff filed his Motion for Summary Final Order Compelling Production of Public Records and Entry of Peremptory Writ of Mandamus with Incorporated Memorandum of Law.” DIN # 79.

IV. MEMORANDUM OF LAW

a. SUMMARY JUDGMENT STANDARD

Under Florida Rule of Civil Procedure 1.510(c), summary judgment shall be granted if the pleadings, depositions, interrogatory answers, affidavits, and any other admissible summary judgment evidence shows there is no genuine issue as to any material fact and that the movant is entitled to a judgment as a matter of law. Fla. R. Civ. P. 1.510(c); *Volusia County v. Aberdeen at Ormond Beach, L.P.*, 760 So.2d 126, 130 (Fla. 2000); *Moore v. Morris*, 475 So.2d 666, 668 (Fla. 1985). The purpose “is to obviate the expense and delay of summoning a jury in a case to try facts that are not in conflict.” *Anderson v. Maddox*, 65 So.2d 299, 300 (Fla. 1953).

The party moving for summary judgment must demonstrate the absence of any genuine issue of material fact. *Moore v. Morris*, 475 So.2d at 668. The burden then shifts to the opposing

party to counter with evidence sufficient to reveal a genuine issue. *Publix Supermarkets, Inc. v. Austin*, 658 So.2d 1064, 1068 (Fla. 5th DCA 1995). In its review, the court must draw all possible inferences in favor of the non-moving party. *Moore v. Morris*, 475 So.2d at 668. However, where the non-movant cannot meet its burden to refute the movant, entry of summary judgment is proper. *Landers v. Milton*, 370 So.2d 368, 370 (Fla. 1979).

The issue in this case is that this is a Mandamus proceeding. A Writ of Mandamus is an extraordinary remedy, whereby issuance is appropriate only when necessary to vindicate the rights of citizens when a government agency or official has refused to perform a ministerial duty. *Perry v. Dep't of Children & Families*, 220 So.3d 546, 549 (Fla. 3d DCA 2017). In order to establish entitlement to a writ of mandamus, the petitioner must demonstrate a clear right to the requested relief, which the respondent must have an indisputable legal duty to perform and petitioner must have no other adequately available remedy. *Huffman v. State*, 813 S0.2d 10, 11 (Fla. 2000).

When a trial court receives a petition for a writ of mandamus, the court must initially assess facial sufficiency of the petition. *Davis v. State*, 861 So.2d 1214, 1215 (Fla. 2d DCA 2003). If the petition is deemed facially sufficient, the court must direct the respondent to show cause why the writ should not be issued. *Moore v. Ake*, 693 So.2d 697, 698 (Fla. 2d DCA 1997). Petitioner must establish a clear legal right to require performance of the duty. *Fla. League of Cities v. Smith*, 607 So. 2d 397, 400-401 (Fla. 1992); *State, ex. Rel. Cortez v. Bentley*, 457 So. 2d 1072 (Fla. 2d DCA 1984).

A duty or act is “ministerial,” for purposes of mandamus relief, when there is no room for exercise of discretion and performance being required is directed by law. *Town of Manalapan v. Rechler*, 674 So. 2d 789, 790 (Fla. 4th DCA 1996). The procedure for consideration of a writ of mandamus in the trial court is as outlined by the Second District Court of Appeal:

“A party petitioning for a writ of mandamus must establish a clear legal right to performance of the act requested, an indisputable legal duty, and no adequate remedy at law. When a trial court receives a petition for a writ of mandamus, its initial task is assessing the petition to determine whether it is facially sufficient. If it is not facially sufficient, the court may dismiss the petition. If the petition is facially sufficient, the court must issue an alternative writ of mandamus requiring the respondent to show cause why the writ should not be issued. If the petition and answer to the alternative writ raise disputed factual issues, the trial court must resolve these issues upon evidence submitted by the parties. If undisputed affidavits are submitted to the trial court, the court may be able to resolve the issues based on those affidavits.”

Radford v. Brock, 914 So. 2d 1066, 1067–68 (Fla. 2d DCA 2005)

b. ARGUMENT

Despite numerous motions, hearings, and rulings, Plaintiff continues to convolute the proceeding he initiated. Plaintiff seeks for this Court to enter an order requiring the Defendants to provide the video that was withheld pursuant to Florida Rule of General Practice and Judicial Administration 2.420(c)(8); Florida Statutes §119.071(3)(a); and Op Att’y Gen. Fla. 2015-06 (2015). A Writ of Mandamus is an extraordinary remedy, whereby issuance is appropriate only when necessary to vindicate the rights of citizens when a government agency or official has refused to perform a ministerial duty. *Perry v. Dep’t of Children & Families*, 220 So.3d 546, 549 (Fla. 3d DCA 2017). Plaintiff has not demonstrated that the Defendants refused to perform a ministerial duty. The information provided demonstrates that the public records request was complied with and the only portion of Plaintiff’s request that was withheld was the security video, which was done pursuant to Florida Rule of General Practice and Judicial Administration 2.420(c)(8); Florida Statutes §119.071(3)(a); and Op Att’y Gen. Fla. 2015-06 (2015). Exhibit D, E. Additionally, the reasoning was also provided to Plaintiff. Exhibit D, E.

Mandamus proceedings do not permit a motion for summary judgment. When a trial court receives a petition for a writ of mandamus, the court must initially assess facial sufficiency of the petition. *Davis v. State*, 861 So.2d 1214, 1215 (Fla. 2d DCA 2003). If the petition is deemed

facially sufficient, the court must direct the respondent to show cause why the writ should not be issued. *Moore v. Ake*, 693 So.2d 697, 698 (Fla. 2d DCA 1997). Petitioner must establish a clear legal right to require performance of the duty. *Fla. League of Cities v. Smith*, 607 So. 2d 397, 400-401 (Fla. 1992); *State, ex. Rel. Cortez v. Bentley*, 457 So. 2d 1072 (Fla. 2d DCA 1984). It is the established practice under law that when a motion for a peremptory writ, notwithstanding the answer or return is made, the movant thereby admits as true each allegation of fact properly pleaded or stated in the answer. *See State ex rel. Atlantic Peninsular Holding Co. v. Butler*, 121 Fla. 417, 164 So. 128. *State ex rel. Dixie Inn v. City of Miami*, 24 So. 2d 705, 707 (Fla. 1946). The mandate of an alternative writ of mandamus is peculiarly within the control of the court, and the court may fashion it to suit the case made in the petition. The alternative writ is therefore not required to be strictly conformed to the petition, as is the peremptory writ to the alternative writ, but on the information disclosed by the petition the court may mould the alternative writ or direct it to be moulded to the case presented. *State v. White Oak R. Co.*, 65 W. Va. 15, 64 S. E. 630, 28 L. R. A. (N. S.) 1013; *State ex rel. Dox v. Board of Equalization of Johnson County*, 10 Iowa, 157, 74 Am. Dec. 381. *City of Bradenton v. State ex rel. Perry*, 160 So. 506, 507 (Fla. 1935). A motion for a peremptory writ, notwithstanding the return, is equivalent to and operates as a demurrer to the well pleaded facts set forth in the respondent's return. *State ex rel. Harrington v. City of Pompano*, 136 Fla. 730, 188 So. 610. The controlling question here is whether or not the facts set out in the return as made by the respondent to the alternative writ of mandamus, as a matter of law, constitute a good defense. The well pleaded facts in the return are admitted to be true on motion for a peremptory writ of mandamus, the answer or return notwithstanding. *Wheeler Fertilizer Co. v. Rogers*, 49 So. 2d 83, 86 (Fla. 1950)

Here, Plaintiff continues to delay the proceedings with his continued lack of understanding. Plaintiff seeks a summary final order and entry of peremptory writ without a full understanding of the proceedings. Pursuant to Rule 1.630(d)(2), “[i]f the complaint shows a prima facie case for relief, the court shall issue ... an alternative writ in mandamus.” An alternative writ in mandamus is essentially an order to show cause. *See Gilliam v. State*, 996 So.2d 956, 958 (Fla. 2d DCA 2008) (stating that if a petition for writ of mandamus states a prima facie case for relief, the trial court must issue an alternative writ, “which ‘is essentially an order to show cause why the requested relief should not be granted.’” (quoting *Bostic v. State*, 875 So.2d 785, 786 (Fla. 2d DCA 2004))); *Conner v. Mid-Fla. Growers, Inc.*, 541 So.2d 1252, 1256 (Fla. 2d DCA 1989) (“Upon receipt of a facially sufficient petition for writ of mandamus, a court having jurisdiction to consider such a petition should first issue an alternative writ, which is essentially an order to show cause why the requested relief should not be granted.”). “If the petition and answer to the alternative writ raise disputed factual issues, the trial court must resolve these issues ...” *See Radford v. Brock*, 914 So.2d 1066, 1068 (Fla. 2d DCA 2005). *Miami-Dade Cnty. Bd. of Cnty. Com'rs v. An Accountable Miami-Dade*, 208 So. 3d 724, 732 (Fla. 3d DCA 2016). This Court has continuously attempted to schedule a hearing on these proceedings, however Plaintiff continues to delay the Court’s efforts by continuously filing motions outside of Rule 1.630.

Plaintiff seeks for this Court to circumvent the procedures outlined in Rule 1.630, which Plaintiff initiated with this litigation, in order to obtain the video he was denied access to pursuant to Florida Rule of General Practice and Judicial Administration 2.420(c)(8); Florida Statutes §119.071(3)(a); and Op Att’y Gen. Fla. 2015-06 (2015). Plaintiff’s inability to seek the proper remedy under Florida Statutes § 119.071(3)(a)(3)d, is not the Defendants failing to complete their ministerial duties.

Plaintiff also seeks this Court to require Defendants to provide a public records request in the same format as one would provide discovery. There is no authority to support this position. Florida Statutes §119 provides for request, inspection, and copies of records, it does not require records to be provided in discovery style format. Defendants provided Plaintiff with his requested documents pursuant to Florida Statutes §119. Plaintiff may be unhappy with their organization, but that does not demonstrate that the Defendants refused to perform a ministerial duty.

V. CONCLUSION

Defendants, Thirteenth Judicial Circuit Court, Court Administrator of the Thirteenth Judicial Circuit, Chief Judge Christopher C. Sabella, Judge Kelly Ayers, and Judge Matthew Felix respectfully requests this Honorable Court deny Plaintiff's Motion for Summary Final Order and Entry of Peremptory Writ of Mandamus and grant all other relief to Defendants it deems just and proper.

Respectfully Submitted,

JAMES UTHMEIER
ATTORNEY GENERAL

/s/ Jessica Schwieterman

Jessica Schwieterman

Senior Assistant Attorney General

Florida Bar No. 116460

Office of the Attorney General

3507 E. Frontage Road, Suite 200

Tampa, FL 33607

T - (813) 233-2880; F - (813) 281-1859

Jessica.Schwieterman@myfloridalegal.com

Counsel for Defendants 13th Judicial Circuit, Trial

Court Administrator Gina Justice, Chief Judge

Sabella, Judge Ayers, and Judge Felix

CERTIFICATE OF SERVICE

I hereby certify that on May 26, 2026, I electronically filed the foregoing with the Clerk of Court by using the Florida Courts eFiling Portal.

/s/ Jessica Schwieterman
Jessica Schwieterman
Senior Assistant Attorney General

Exhibit A: Public Records Requests from Christopher Hanson (Electronic Correspondence)
July 24, 2025

Christopher Hanson
3934 E Eden Roc Cir
Tampa, FL 33634
727-409-5738
cahanson77@yahoo.com (mailto:cahanson77@yahoo.com)
727-409-5738

July 24, 2025

13th Judicial Circuit
Legal Department – Public Records
800 E. Twiggs Street, Room 600
Tampa, FL 33602

Re: Public Records Request – Email and Text Communications of Judge Kelly Ayers and all other 13th Circuit representatives relating to scheduling or attendance at the 12-13-24 hearing.

Dear Court Administrator/Records Department (publicinfo@fljud13.org; recording@hillsclerk.com; publicrecords@hillsclerk.com),

Pursuant to Chapter 119, Florida Statutes (Public Records Act), Article I, Section 24 of the Florida Constitution, and Chapter 286, Florida Statutes (Government in the Sunshine Law), I request access to inspect and copy all emails and text messages and/or any other form of written communication, sent or received by Judge Kelly Ayers, her judicial assistant, (Dwauna Heyward), and/or any other 13th Circuit representative who participated in scheduling the 12-13-24 hearing on Case No. 24-DR-1150, In Re: The Marriage of Sarah Hanson and Christopher Hanso. Specifically, I'm requesting all of these materials from December 1, 2024, to December 20, 2024, including communications with court staff, attorneys and/or their agents, or others about scheduling and/or attendance at the hearing on December 13, 2024.

Emails and text messages (even on a private phone) related to public business are public records under Chapter 119, even if on personal devices, as they constitute "records" if prepared in connection with official duties (Section 119.011(12), F.S.). For judicial

communications about case scheduling, they are public unless exempt. No exemption applies here, as divorce scheduling is generally public. Please provide the records in electronic format if available, or advise on inspection arrangements. I am willing to pay reasonable fees for production. If you believe any exemption applies, please provide a written explanation with statutory citations so that we may address the matter in the Courts. Respond within a reasonable time, as required by law and please let me know if you have any questions or if there is another point of contact that will respond more efficiently. Thank you for your assistance.

Sincerely,

Chris Hanson

Christopher Hanson

727-409-5738

Cahanson77@yahoo.com

Exhibit B: Second Public Records Requests from Christopher Hanson (Electronic Correspondence)
July 24, 2025

Christopher Hanson
3934 E Eden Roc Cir
Tampa, FL 33634
727-409-5738
cahanson77@yahoo.com (mailto:cahanson77@yahoo.com)
727-409-5738

July 24, 2025

13th Judicial Circuit
Legal Department – Public Records
800 E. Twiggs Street, Room 600
Tampa, FL 33602

Re: Public Records Request – Case No. 24-DR-1150, Hanson v. Hanson – All Visual and Audio Recordings of Specified Hearings

Dear Court Administrator/Records Department (publicinfo@fljud13.org; recording@hillsclerk.com; publicrecords@hillsclerk.com),

Pursuant to Chapter 119, Florida Statutes (Public Records Act), Article I, Section 24 of the Florida Constitution, and Chapter 286, Florida Statutes (Government in the Sunshine Law), I request access to inspect and copy all visual and audio recordings from the following hearings in Case No. 24-DR-1150, In Re: The Marriage of Sarah Hanson and Christopher Hanson, Division D, including both live and Zoom formats:

Docket #90 – December 19, 2024 hearing

Docket #109 – January 9, 2025 hearing

Docket #118 – January 21, 2025 hearing

Docket #152 – February 12, 2025 hearing

Docket #155 – October 28, 2024 hearing

Docket #158 – December 13, 2024 hearing

Docket #192 – April 22, 2025 hearing

Docket #198 – April 4, 2025 hearing

Court hearings are public proceedings, and videos or recordings of them are public records under Chapter 119 if created or maintained by the court (e.g., via official recording systems). The Florida Supreme Court has emphasized that access to public video records "should not be denied or left to the unfettered discretion of the trial court," to ensure transparency. In this case, the transcript from April 4, 2025 (Page 74), shows Judge Kelly Ayers stating that camera footage exists and suggesting she'd retrieve it, confirming it is a public record subject to disclosure.

Please provide the records in electronic format if available, or advise on inspection arrangements. I am willing to pay reasonable fees for production. If you believe any exemption applies, please provide a written explanation with statutory citations so that we may address the matter in the courts. Respond within a reasonable time, as required by law, and please let me know if you have any questions or if there is another point of contact that will respond more efficiently. Thank you for your assistance.

Sincerely,

Chris Hanson

Christopher Hanson

727-409-5738

Cahanson77@yahoo.com

Exhibit C: Third Public Records Requests from Christopher Hanson (Electronic Correspondence)
July 25, 2025

Christopher Hanson
3934 E Eden Roc Cir
Tampa, FL 33634
727-409-5738
cahanson77@yahoo.com (mailto:cahanson77@yahoo.com)
727-409-5738

July 25, 2025

13th Judicial Circuit
Legal Department – Public Records
800 E. Twiggs Street, Room 600
Tampa, FL 33602

Re: Public Records Request – Case No. 24-DR-1150, Hanson v. Hanson – Email and Text Communications of Judge Kelly Ayers, her judicial assistant (Dwauna Heyward), and All Other 13th Circuit Representatives Relating to Scheduling or Attendance at the January 9, 2025 Hearing

Dear Mr. Moore/whom it may concern (james.moore@fljud13.org;publicinfo@fljud13.org; civdivo@fljud13.org),

Pursuant to Chapter 119, Florida Statutes (Public Records Act), Article I, Section 24 of the Florida Constitution, and Chapter 286, Florida Statutes (Government in the Sunshine Law), I request access to inspect and copy all emails and text messages and/or any other form of written communication, sent or received by Judge Kelly Ayers, her judicial assistant (Dwauna Heyward), and/or any other 13th Circuit representative who participated in scheduling the January 9, 2025 hearing on Case No. 24-DR-11550, In Re: The Marriage of Sarah Hanson and Christopher Hanson. Specifically, I am requesting all of these materials from December 21, 2024, to January 20, 2025, including communications with court staff, attorneys and/or their agents, or others about scheduling and/or attendance at the hearing on January 9, 2025.

Emails and text messages related to public business are public records under Chapter 119, even if on personal devices, as they constitute "records" if prepared in connection with official duties (Section 119.011(12), F.S.). For judicial communications about case scheduling, they are public unless exempt. No exemption applies here, as divorce scheduling is generally public. Please provide the records in electronic format if available, or advise on inspection arrangements. Please also provide me with some information about the process used to gather materials so I may confirm the response is complete. I am willing to pay reasonable fees for production. If you believe any exemption

applies, please provide a written explanation with statutory citations so that we may address the matter in the courts. Please respond within a reasonable time, as required by law, and let me know if you have any questions or if there is another point of contact that will respond more efficiently. Thank you for your assistance.

Sincerely,

Chris Hanson

Christopher Hanson

727-409-5738

Cahanson77@yahoo.com

Exhibit D: Letter from Gina Justice
August 21, 2025



ADMINISTRATIVE OFFICE OF THE COURTS

THIRTEENTH JUDICIAL CIRCUIT OF FLORIDA

CHRISTOPHER C. SABELLA
CHIEF JUDGE

GINA JUSTICE
COURT ADMINISTRATOR

August 21, 2025

Mr. Christopher Hanson
3934 E. Eden Roc Circle
Tampa, FL 33634

Re: Public Records Request – *Hanson v. Hanson*, Case No.: 24-DR-1150, Family Law,
Division D.

Dear Mr. Hanson:

This letter serves as a collective response to your three (3) public record requests directed to our Public Information Officer, Mike Moore, via email dated July 25, 2025.

As a preliminary matter, Chapter 119, Florida Statutes, does not apply to records of the judicial branch of government. *See Times v. Ake*, 660 So. 2d 255 (Fla. 1995) (determining the judicial branch of government is not an “agency” subject to Chapter 119, Florida Statutes). However, we are treating your public records request as a request for administrative records of the judicial branch in accordance with Florida Rule of General Practice and Judicial Administration 2.420 and article 1, section 24 of the Florida Constitution.

Florida Rule of General Practice and Judicial Administration 2.420(m) provides the procedure for public access to Judicial Branch records. According to Rule 2.420(m)(3), fees for judicial records are the same as provided in section 119.07, Florida Statutes. Section 119.07(4)(a)1. authorizes the assessment of \$.15 per page.

The nature of your requests did result in the generation of records that meet your requests. The number of records located totals 226 pages. As such, prior to furnishing the records you requested, our office will need to receive advance payment for the copies of the records, including shipping, depending on the method of delivery you choose.

Mr. Christopher Hanson

August 21, 2025

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Below are the responses to each of the three requests contained in your email dated July 25, 2025:

A copy of all visual and audio recordings from the following hearings in Case No. 24-DR-1150, In Re: The Marriage of Sarah Hanson and Christopher Hanson, Division D, including both live and Zoom formats:

- There are no records satisfying this request related to the following hearings – Docket #90 – December 19, 2024, Docket #109 – January 9, 2025, Docket #118 – January 21, 2025, Docket #152 – February 12, 2025, Docket #155 – October 28, 2024, Docket #158 – December 13, 2024, and Docket #192 – April 22, 2025.
- A video record does exist satisfying this request, specifically, Docket #198 – April 4, 2025 hearing. However, in accordance with Florida law, surveillance video footage from security cameras located on and within courthouse facilities in the Thirteenth Judicial Circuit is confidential and exempt from public record disclosure. See Fla. R. Admin. 2.420(c)(8); Fla. Stat. §119.071(3)(a); Op Att’y Gen. Fla. 2015-06 (2015). Confidential surveillance video footage may be released only as authorized by §119.071(3)(a)3., Fla. Stat.

A copy of all emails and text messages and/or any other form of written communication, sent or received by Judge Ayers, her judicial assistant (Dwauna Heyward), and/or any other 13th Circuit representative who participated in scheduling the December 13, 2024 hearing on Case No. 24-DR-11550, In Re: The Marriage of Sarah Hanson and Christopher Hanson. Specifically, requesting all of these materials from December 1, 2024 to December 20, 2024, including communications with court staff, attorneys and/or their agents, or others about scheduling and attendance at the hearing on December 13, 2024.

- Records do exist that satisfy this request.

A copy of all emails and text messages and/or any other form of written communication, sent or received by Judge Ayers, her judicial assistant (Dwauna Heyward), and/or any other 13th Circuit representative who participated in scheduling the January 9, 2025 hearing on Case No. 24-DR-11550, In Re: The Marriage of Sarah Hanson and Christopher Hanson. Specifically, requesting all of these materials from December 21, 2024 to January 20, 2025, including communications with court staff, attorneys and/or their agents, or others about scheduling and attendance at the hearing on January 9, 2025.

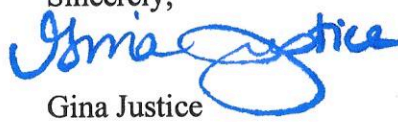
- Records do exist that satisfy this request.

In order to receive the records associated with your request, please submit a check for the total amount of \$33.90, made payable to Hillsborough County Board of County Commissioners. After your check has been received and processed, my assistant Christine Cuenin-Wilson will call you to arrange a time for you to pick up the records at the George Edgecomb Courthouse.

Mr. Christopher Hanson
August 21, 2025
Page 3

Alternatively, we can ship the records satisfying your request to the following address - 3934 E. Eden Roc Circle, Tampa, FL 33634, after we receive and process a check in the amount of \$44.85, as outlined in the table below, made payable to Hillsborough County Board of County Commissioners.

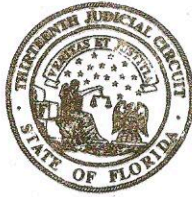
DESCRIPTION	QUANTITY	RATE	COST
Black & white copy, 8 ½" x 11" page	226	\$.15	\$33.90
Shipping	1	\$10.95	\$10.95
TOTAL COST			\$44.85

Sincerely,

Gina Justice
Court Administrator

GJ/rtm

cc: The Honorable Kelly A. Ayers, Circuit Court Judge
Dwauna Heyward, Judicial Assistant

Exhibit E: Response from Gina Justice on Video Availability
September 8, 2025



ADMINISTRATIVE OFFICE OF THE COURTS

THIRTEENTH JUDICIAL CIRCUIT OF FLORIDA

September 8, 2025

CHRISTOPHER C. SABELLA
CHIEF JUDGE

GINA JUSTICE
COURT ADMINISTRATOR

Mr. Christopher Hanson
3934 E. Eden Roc Circle
Tampa, FL 33634

Re: Follow-up Public Records Request – *Hanson v. Hanson*, Case No.: 24-DR-1150,
Family Law, Division C.

Dear Mr. Hanson:

This letter is in response to your Request for Clarification and Reconsideration of Video Access via email dated August 31, 2025 at 3:57 p.m.

As it relates to your request for the April 4, 2025 video recording, which you also requested in your original public record request of July 25, 2025, the court's public records response of August 26, 2025, stated that a video record does exist satisfying this request, specifically, Docket #198 - April 4, 2025 hearing. However, in accordance with Florida law, surveillance video footage from security cameras located on and within courthouse facilities in the Thirteenth Judicial Circuit is confidential and exempt from public record disclosure. See Fla. R. Admin. 2.420(c)(8); Fla. Stat. §119.071(3)(a); Op Att'y Gen. Fla. 2015-06 (2015). Confidential surveillance video footage may be released only as authorized by §119.071(3)(a)3., Fla. Stat. Accordingly, the court's position to your follow-up request has not changed.

Lastly, as an attorney, I am certain that you can appreciate the fact that the court will not ignore or intentionally violate the applicable rule of court or statute cited above to satisfy your request.

Sincerely,

A handwritten signature in blue ink, appearing to read "Gina Justice", is written over a horizontal line.

Gina Justice
Court Administrator

GJ/rtn